Questions Presented

1. Whether Congress may constitutionally impose upon the President the same financial-disclosure, divestiture, recusal, conflict-of-interest, and ethics-investigation requirements that Congress may impose upon other executive officers.
2. Whether Article II's vesting of executive power in the President, together with the Take Care Clause, the President's national-security and foreign-affairs responsibilities, and the separation of powers, creates constitutional limitations on Congress's ability to regulate presidential conduct.
3. Whether executive privilege, presidential immunity, and separation-of-powers principles limit Congress's or the courts' ability to investigate and enforce ethics requirements against the President.
4. Whether the Vice President's constitutional position requires treatment different from both the President and ordinary executive officers.
5. Whether Congress has materially greater authority to impose ethics requirements upon presidential appointees and subordinate executive officers than upon the President personally.

Brief Answers

1. Probably yes as to disclosure and certain investigative requirements; substantially less clearly as to substantive conduct restrictions. The Constitution does not appear to prohibit Congress from requiring the President to disclose financial information. Indeed, the Ethics in Government Act has long expressly required presidential financial disclosure, and the D.C. Circuit has recognized that the Act applies to the President. *Lovitky v. Trump*, 918 F.3d 1174, 1178–80 (D.C. Cir. 2019); *Lovitky v. Trump*, 949 F.3d 753, 756–58 (D.C. Cir. 2020). The constitutional difficulty increases considerably when a statute goes beyond disclosure and requires the President to change how he exercises Article II authority—for example, by compelling recusal from matters within his constitutional responsibilities or requiring divestiture of property. The D.C. Circuit expressly identified that distinction in the litigation preceding *Trump v. Mazars USA, LLP*, while declining to resolve the validity of presidential recusal or divestiture requirements. The Supreme Court likewise emphasized in *Mazars* that the President occupies a "unique constitutional position" when Congress seeks his personal information.

2. Yes. Article II makes the President constitutionally different from ordinary executive officers. The Supreme Court's modern separation-of-powers decisions emphasize that the President is the constitutional repository of executive power and possesses responsibilities that cannot simply be reassigned or disabled by statute. The Take Care Clause further makes presidential execution of federal law a constitutional duty rather than merely a statutory responsibility. Consequently, an ethics law that merely requires disclosure presents a substantially different constitutional question from one that prevents the President from taking an official action because of a financial interest.

3. Yes, but not as an absolute immunity from oversight or process. *United States v. Nixon* rejected an absolute presidential privilege against judicial process, while recognizing a presumptive privilege for presidential communications. *Nixon v. Administrator of General Services* upheld congressional regulation affecting presidential materials where the intrusion was limited and supported by legitimate governmental interests. *Trump v. Mazars* imposed heightened safeguards on congressional demands for the President's personal information, while *Trump v. Vance* rejected categorical presidential immunity from a state criminal subpoena for personal financial records. Most importantly, *Trump v. United States*, 603 U.S. 593 (2024), subsequently held that a former President enjoys at least presumptive immunity from criminal prosecution for official acts, and absolute immunity for exercises of core constitutional powers. That decision makes direct criminal enforcement of ethics rules against presidential official acts constitutionally more difficult than the earlier cases alone suggested.

4. The Vice President occupies an intermediate constitutional position. The Vice President is not simply another executive officer: the office is separately established by Article II, the Vice President has a constitutional role in the Senate, and the Vice President succeeds to the Presidency. At the same time, Article II vests "[t]he executive Power" in the President, not the Vice President. The Vice President therefore lacks the President's independent constitutional authority over executive administration. *Cheney v. United States District Court*, 542 U.S. 367 (2004), nevertheless confirms that the Vice President's close role as presidential adviser can trigger substantial separation-of-powers concerns when government process intrudes upon presidential deliberations. The constitutional case for applying generally applicable ethics rules to the Vice President is therefore stronger than it is for the President, but the Vice President should not automatically be treated like a cabinet officer.

5. Congress has substantially greater constitutional authority over subordinate executive officers. Officers exercising delegated executive authority generally operate subject to presidential supervision, statutory qualifications, statutory duties, and congressional regulation. The removal cases—*Myers*, *Humphrey's Executor*, *Morrison*, *Seila Law*, and *Collins*—show that the President's control over executive officers is itself constitutionally significant. Ethics requirements imposed upon subordinate officials ordinarily regulate the administration of executive power rather than disable the President's own constitutional functions. The same rule applied directly to the President, however, can raise a fundamentally different Article II problem.

The most defensible constitutional distinction is therefore **not between "ethics laws" and "non-ethics laws," but between laws that regulate transparency and administration and laws that directly constrain the President's exercise of constitutionally vested power.**

Discussion

I. Article II makes the President constitutionally distinct from ordinary executive officers.

The starting point is Article II's Vesting Clause: “[t]he executive Power shall be vested in a President of the United States of America.” The constitutional structure consequently differs from a system in which executive power is vested collectively in a cabinet or administrative department.

The Supreme Court's recent Article II jurisprudence repeatedly emphasizes this structural distinction. In *Seila Law LLC v. Consumer Financial Protection Bureau*, the Court described the President as the constitutionally responsible officer for execution of federal law and treated presidential control over executive administration as a central feature of Article II.

Likewise, *Collins v. Yellen* reaffirmed the principle that officers exercising executive power ordinarily must remain subject to presidential control, invalidating the statutory restriction on removal of the Federal Housing Finance Agency's single director.

These cases do not hold that Congress cannot regulate presidential conduct. They establish something more basic: **the constitutional status of the President is different from that of a subordinate executive official.**

That distinction matters to ethics regulation because an ordinary executive officer can generally be required to abstain from a matter, surrender a conflicting financial interest, or comply with statutory restrictions without eliminating the President's constitutional authority. If the President himself is required to abstain from executing a law, however, the regulation potentially prevents the constitutionally designated officer from exercising the executive power.

The constitutional question is therefore not merely whether an ethics statute is reasonable. It is whether the particular requirement **interferes with an authority or duty that the Constitution itself assigns to the President.**

II. Financial disclosure requirements are constitutionally the strongest form of direct presidential ethics regulation.

A. The President is already subject to federal financial disclosure requirements.

The clearest example is the Ethics in Government Act. The statute expressly includes the President within its financial-disclosure regime.

The D.C. Circuit addressed the statute directly in *Lovitky v. Trump*. The plaintiff alleged that President Trump had failed to provide information required by the Act concerning liabilities associated with his business interests. The court recognized that the statute applies to presidential candidates and the President and that the Act requires specified financial information to be disclosed. *Lovitky v. Trump*, 949 F.3d 753, 756–58 (D.C. Cir. 2020).

The important point is what the statute does **not** do. Financial disclosure does not require the President to sell an asset, refrain from making a decision, transfer authority to another official, or alter the President's substantive exercise of executive power.

That difference was explicitly recognized by the D.C. Circuit in the litigation leading to *Mazars*. The court noted that laws requiring presidential divestiture or recusal could raise difficult constitutional questions because they might "disempower" a President from performing constitutional functions. By contrast, a financial-disclosure statute requires the President only to provide information.

That distinction is constitutionally significant.

Constitutional implication

A disclosure requirement is primarily **informational**. It does not necessarily determine what the President may do with the information once disclosed.

A recusal requirement, by comparison, is **substantive**: it determines whether the President may exercise an Article II power.

A divestiture requirement is more intrusive still because it requires the President to alter his personal property interests as a condition of exercising public authority.

The constitutional burden therefore increases as the regulation moves along the following spectrum:

disclosure → transparency → investigation → recusal → divestiture → substantive prohibition on presidential action.

This is not a categorical constitutional test, but the case law strongly suggests that the distinction matters.

III. *Trump v. Mazars* provides the clearest judicial recognition of the disclosure-versus-conduct distinction.

Facts

The House of Representatives issued subpoenas to President Trump's accounting firm, Mazars USA, seeking financial records relating to the President and his businesses. The President challenged the subpoenas on separation-of-powers grounds.

Constitutional issue

The principal question was whether Congress may obtain the President's personal financial information through compulsory process and, if so, what standard governs that congressional demand.

Holding

The Supreme Court rejected both an absolute presidential immunity and the ordinary congressional-subpoena standard. It established a heightened framework requiring courts to consider the separation-of-powers interests implicated by congressional demands for presidential information.

The Court emphasized that the President's "unique constitutional position" requires special care when Congress seeks his personal information.

Reasoning

The Court required consideration of whether the legislative purpose warrants involving the President and his papers, whether Congress's subpoena is no broader than necessary, and whether Congress has provided sufficiently detailed evidence of its legislative objective.

The decision is important because it does **not** treat presidential financial information as categorically immune.

Instead, *Mazars* recognizes two propositions simultaneously:

1. Congress possesses legitimate investigative authority concerning the President; but
2. Congress must account for the President's unique constitutional position when it seeks his personal information.

Implication for ethics regulation

Mazars strongly supports the constitutionality of **financial disclosure** as a general matter while suggesting that enforcement mechanisms directed at presidential personal information may require heightened procedural safeguards.

More importantly, the lower-court proceedings in *Mazars* expressly distinguished disclosure from laws requiring presidential recusal or divestiture. The D.C. Circuit observed that those more intrusive requirements might raise constitutional problems but concluded that it did not need to decide them because the disclosure regime imposed “far fewer burdens.”

That distinction is perhaps the most directly relevant appellate authority for the question presented here.

IV. *Trump v. Vance* confirms that presidential status does not create categorical immunity from compelled disclosure of personal financial information.

Facts

The Manhattan District Attorney sought President Trump's financial records from his accounting firm pursuant to a state grand-jury subpoena. President Trump argued that the Supremacy Clause and Article II categorically prohibited the subpoena while he was President.

Constitutional issue

Whether a sitting President enjoys absolute immunity from state criminal process seeking personal financial records.

Holding

The Supreme Court rejected categorical immunity. A President is not absolutely immune from a state grand-jury subpoena seeking private papers and information.

Reasoning

The Court recognized that the President occupies a “unique position in the constitutional scheme” and that his duties have “unrivaled gravity and breadth.” But those considerations did not justify an absolute bar to judicial process directed at personal records.

The Court therefore distinguished between legitimate presidential protections—such as executive privilege and immunity concerning official conduct—and an absolute immunity from demands for personal information.

Implication

Vance strongly supports the proposition that **financial information concerning the President is not constitutionally untouchable merely because the person possessing it is President.**

The decision does not, however, establish that Congress may regulate the President's substantive decisions concerning those finances.

That distinction remains crucial.

V. *United States v. Nixon* establishes that executive privilege is qualified rather than absolute.

Facts

A grand jury investigating the Watergate scandal subpoenaed President Nixon's Oval Office recordings. President Nixon asserted an absolute presidential privilege protecting confidential communications.

Constitutional issue

Whether separation of powers and presidential confidentiality created an absolute privilege against judicial demand for presidential communications.

Holding

The Supreme Court recognized a presumptive privilege for presidential communications but held that the privilege was not absolute. A demonstrated, specific need for evidence in a criminal proceeding could overcome the generalized confidentiality interest.

Reasoning

The Court recognized the importance of confidentiality to presidential decision-making but rejected the proposition that separation of powers gives the President absolute immunity from judicial process. The Court described the privilege as rooted in the constitutional separation of powers while simultaneously emphasizing the judiciary's constitutional responsibility to adjudicate criminal cases.

Implication for ethics investigations

Nixon establishes two propositions relevant to ethics regulation.

First, **presidential communications receive special constitutional protection.**

Second, that protection does not amount to **categorical immunity from investigation**.

An ethics investigation therefore cannot simply be defeated by invoking Article II in the abstract. The relevant question is whether the investigation demands privileged presidential communications, interferes with presidential functions, or merely seeks information that can be obtained without such intrusion.

This distinction becomes particularly important where Congress seeks evidence concerning potential ethical misconduct.

VI. *Nixon v. Administrator of General Services* supports regulation that imposes limited burdens without disabling presidential functions.

Facts

Following President Nixon's resignation, Congress enacted the Presidential Recordings and Materials Preservation Act, directing the government to preserve and review presidential papers and recordings.

Nixon challenged the law as an unconstitutional intrusion on presidential confidentiality and executive power.

Constitutional issue

Whether Congress could regulate presidential records notwithstanding the President's interests in confidentiality and control of presidential materials.

Holding

The Supreme Court upheld the statute.

Reasoning

The Court recognized substantial presidential interests in confidentiality but examined the actual burden imposed by the statute rather than treating Article II as categorically prohibiting congressional regulation. The Court's analysis focused on whether the statute prevented the Executive Branch from performing its constitutionally assigned functions and whether the congressional objectives justified the intrusion. The Court ultimately concluded that the statutory burden was sufficiently limited in light of Congress's legitimate interests.

The Court's approach is particularly important because it did not reason that every intrusion upon presidential confidentiality is unconstitutional.

Implication

Nixon v. GSA supplies a useful general principle:

> **The constitutional question depends substantially upon the nature and degree of the burden placed upon presidential functions.**

That principle supports disclosure requirements much more readily than mandatory recusal or divestiture.

A disclosure law may burden the President by requiring additional paperwork or exposing personal financial information.

A recusal law can go further: it can prevent the President from exercising a constitutionally assigned power.

A divestiture law may go further still by requiring the President to alter his personal property holdings as a condition of performing constitutional duties.

The distinction is therefore not between “regulation” and “no regulation,” but between **incidental burdens on presidential administration and direct restrictions on presidential power.**

VII. *Clinton v. Jones* demonstrates that presidential immunity is not a general exemption from legal obligations.

Facts

Paula Jones brought a civil action against President Clinton based upon alleged conduct predating his presidency. Clinton argued that the Constitution required the litigation to be postponed until he left office.

Constitutional issue

Whether a sitting President enjoys temporary immunity from civil litigation concerning unofficial conduct.

Holding

The Supreme Court rejected categorical temporary immunity.

Reasoning

The Court distinguished between official presidential duties and unofficial conduct. The lawsuit did not seek to control an official presidential act and therefore did not implicate the same separation-of-powers concerns.

Implication

Clinton v. Jones is useful but must be read carefully.

It does not establish that every legal obligation may be imposed upon a President simply because it does not formally prevent him from exercising executive power.

Instead, it establishes a critical distinction between **official and unofficial conduct**.

That distinction became even more constitutionally significant in 2024.

VIII. *Trump v. United States* substantially strengthens constitutional protection for presidential official acts.

Facts

Former President Trump was federally prosecuted for conduct alleged to have occurred while he was President in connection with efforts to challenge the 2020 election results.

Constitutional issue

Whether a former President may be criminally prosecuted for conduct undertaken while President.

Holding

The Supreme Court held that the constitutional structure requires presidential immunity from criminal prosecution for official acts. The Court held that immunity is **absolute for exercises of core constitutional presidential powers** and that at least presumptive immunity applies to other official acts. Unofficial conduct receives no such immunity.

Reasoning

The Court emphasized that Article II vests executive power in the President and that presidential responsibilities—including command of the armed forces, pardons, appointments, foreign affairs, intelligence, and execution of federal law—are of “unrivaled gravity and breadth.”

The Court reasoned that permitting criminal prosecution for official presidential acts could improperly permit the judiciary or other actors to control the President's exercise of constitutionally vested power.

Implication for ethics regulation

This decision materially changes the analysis of **ethics investigations and enforcement**.

A statutory ethics prohibition may be constitutionally permissible on its face but still create a constitutional problem if its enforcement requires criminal prosecution of a President for exercising a core Article II power.

For example, there is a major constitutional difference between:

> "The President must disclose any financial interest in a company."

and:

> "The President commits a federal crime if he takes an official action affecting a company in which he owns a financial interest."

The first primarily requires information.

The second potentially makes the legality of the President's exercise of Article II authority depend upon a statutory restriction enacted by Congress.

After *Trump v. United States*, the latter category requires especially careful constitutional analysis.

IX. Mandatory presidential recusal presents substantially greater constitutional difficulty than disclosure.

Recusal is qualitatively different from disclosure.

Disclosure leaves the President constitutionally free to act. Recusal does not.

A mandatory recusal law could prevent the President from:

- signing or vetoing legislation;
- appointing or removing executive officials;
- enforcing federal law;
- exercising prosecutorial authority;
- conducting foreign affairs;
- exercising military authority;
- issuing pardons or reprieves; or
- performing other functions assigned specifically to the President.

The constitutional problem is consequently not merely that Congress is regulating presidential "ethics."

It is that Congress could potentially determine **which person exercises a power that the Constitution assigns to the President.**

The D.C. Circuit identified precisely this concern in *Mazars*, noting that statutes requiring presidential divestiture or recusal might “disempower” Presidents from performing constitutional functions. The court did not resolve whether such statutes are constitutional.

That absence of a definitive holding is important. There is **no Supreme Court decision squarely holding that Congress may compel a sitting President to recuse himself from exercising a constitutionally assigned power because of a statutory financial conflict.**

The better constitutional prediction is therefore cautious:

Congress probably has substantially less authority to mandate presidential recusal than to require disclosure, particularly where recusal would prevent the President from exercising a core constitutional function.

X. Mandatory divestiture presents an even more substantial Article II problem.

Divestiture requires the President to dispose of an asset or financial interest.

At first glance, divestiture appears less intrusive than recusal because it does not necessarily prohibit any particular presidential action. But it raises a different constitutional concern: Congress would be imposing a substantive condition upon the President's ability to hold and exercise the office.

Two constitutional principles make this particularly sensitive.

First, Article II establishes qualifications for the Presidency. Article II requires that the President be a natural-born citizen, at least thirty-five years old, and have been fourteen years a resident of the United States.

The Supreme Court has repeatedly treated the constitutional qualifications for federal office as significant limitations on Congress's ability to add additional qualifications. See *Powell v. McCormack*, 395 U.S. 486 (1969); *U.S. Term Limits, Inc. v. Thornton*, 514 U.S. 779 (1995).

Second, divestiture may directly interfere with property interests in a way that disclosure does not.

The D.C. Circuit therefore correctly identified divestiture as belonging to a more constitutionally difficult category than disclosure, while declining to resolve the issue.

The strongest argument against congressional divestiture authority would be that Congress cannot effectively add a financial qualification to the presidency that the Constitution itself does not contain.

The strongest argument in favor would be that divestiture is merely a generally applicable condition on the exercise of federal power and does not formally alter the qualifications for office.

The existing Supreme Court precedents do not definitively resolve that conflict.

XI. Statutory conflict-of-interest rules present the central unresolved constitutional question.

The classic federal criminal conflict-of-interest statute, 18 U.S.C. § 208, generally prohibits an officer or employee of the federal government from participating personally and substantially in a particular matter in which the officer has a financial interest.

Whether § 208 applies to the President is a distinct statutory question from whether Congress **could constitutionally enact a comparable rule covering the President**.

Those questions should not be conflated.

The constitutional question is difficult because § 208 operates principally through **recusal**. A President covered by the statute could be prohibited from taking an official action that Article II otherwise authorizes or requires.

For ordinary executive officers, that presents little constitutional difficulty: Congress may prescribe the legal duties governing subordinate officials exercising delegated executive authority.

For the President, however, the same rule could prevent the constitutional officeholder from exercising a power that the Constitution assigns specifically to him.

The modern Article II cases consequently suggest a distinction between:

1. **rules governing subordinate administration**, which are ordinarily permissible; and
2. **rules disabling presidential action**, which require much greater constitutional justification.

The Supreme Court has not definitively held that the President is subject to § 208 or that Congress may constitutionally impose every generally applicable conflict-of-interest statute upon the President.

Accordingly, the strongest conclusion is not that presidential conflict-of-interest laws are categorically unconstitutional. It is that **their constitutional application to presidential decision-making is unsettled and materially more difficult to defend than ordinary executive-branch ethics regulation.**

XII. The Take Care Clause complicates mandatory presidential recusal.

The Take Care Clause provides that the President "shall take Care that the Laws be faithfully executed."

That language matters because some presidential actions are not discretionary in the ordinary sense.

If Congress creates a statutory conflict-of-interest rule that requires the President to abstain from executing a particular law, the statute potentially places two legal commands in tension:

1. Congress's ethics command not to participate; and
2. Article II's constitutional command to faithfully execute the law.

That does not necessarily make the ethics rule unconstitutional. Congress obviously has authority to define the laws that the President executes.

But the distinction becomes important where the President's own constitutional authority is involved.

A subordinate officer can generally be replaced if a conflict prevents that officer from performing his statutory duties. A President cannot simply be replaced because Congress concludes that a conflict exists. The Constitution supplies its own mechanisms for presidential succession, removal, and incapacity.

Accordingly, a statutory recusal regime that effectively prevents the President from performing an Article II responsibility may create a constitutional problem that does not exist when the same requirement is imposed upon a cabinet secretary.

XIII. National security and foreign affairs create additional reasons for caution.

Presidential ethics rules can also intersect with responsibilities that the Constitution places particularly heavily upon the President.

Article II makes the President:

- Commander in Chief;

- chief executive responsible for execution of federal law;
- appointing authority for principal officers;
- participant in treaty-making;
- recipient of ambassadors;
- and the nation's principal actor in foreign relations.

Trump v. Vance described these responsibilities as having "unrivaled gravity and breadth."

Those responsibilities matter because financial conflicts can sometimes involve matters that cannot simply be separated from presidential decision-making.

For example, a rule requiring a President to disclose an interest in a foreign enterprise is relatively easy to conceptualize.

A rule providing that the President **may not take any official action involving that country** is far more problematic if the matter concerns:

- diplomatic recognition;
- military operations;
- intelligence;
- sanctions;
- treaties;
- national emergencies;
- or other core presidential functions.

The constitutional objection would not necessarily depend upon whether the President's financial interest was improper. The issue would be whether Congress may legally **disable the President from performing a constitutional function.**

XIV. Executive privilege protects presidential decision-making but does not create an absolute bar to ethics investigations.

Executive privilege is particularly relevant to ethics investigations because an investigation may seek communications between the President and advisers.

United States v. Nixon establishes that presidential communications are presumptively privileged but not absolutely immune from judicial process.

The D.C. Circuit has repeatedly emphasized that executive privilege exists to protect presidential decision-making, not to create personal immunity from judicial process. *In re Cheney* is particularly important in this respect.

There, environmental groups sought discovery concerning the Vice President's energy-policy task force. The D.C. Circuit held that the separation-of-powers issue did not create an absolute immunity from discovery and emphasized that privilege is a mechanism for protecting presidential communications rather than a general immunity from litigation.

The constitutional lesson is important:

An ethics investigation may reach the President, but it cannot necessarily demand every presidential communication merely because the communication is relevant to alleged misconduct.

The investigation must account for the distinction between:

- personal financial records;
- administrative records;
- communications concerning official decisions;
- confidential advice;
- and classified or national-security information.

That is another reason transparency and investigation should not be treated as constitutionally identical.

XV. *Trump v. Mazars* establishes heightened protection against congressional investigations of presidential personal information.

Congressional oversight presents a different problem from ordinary judicial processes.

Mazars held that courts must carefully scrutinize congressional subpoenas seeking presidential information. The Court emphasized that the President's unique constitutional position requires special consideration and that Congress cannot simply treat the President as an ordinary subject of legislative investigation.

Among other considerations, courts should ask whether Congress has another reasonable source for the information and whether the subpoena is no broader than necessary.

The implications for ethics investigations are straightforward.

A congressional committee investigating presidential conflicts of interest cannot necessarily demand every presidential document that might conceivably shed light on the matter.

But *Mazars* also does not establish that Congress is forbidden from investigating presidential ethics.

Instead, it creates a **heightened procedural and separation-of-powers framework**.

XVI. The Vice President occupies an intermediate constitutional position.

The Vice President requires separate treatment.

Article II establishes the office independently and assigns the Vice President a constitutional role as President of the Senate. The Twenty-Fifth Amendment also gives the Vice President a unique position in presidential succession and temporary transfer of presidential power.

At the same time, the Vesting Clause vests executive power in **the President**, not the Vice President.

The Vice President consequently does not possess the President's independent Article II authority merely by virtue of occupying the second office.

That makes ordinary ethics regulation easier to justify as applied to the Vice President.

Nevertheless, the Vice President can function as the President's closest adviser and may participate extensively in executive decision-making.

Cheney v. United States District Court illustrates the point.

Facts

Private plaintiffs sought extensive discovery concerning the Vice President's National Energy Policy Development Group.

Constitutional issue

Whether separation-of-powers principles required extraordinary protection from discovery directed toward the Vice President and senior executive officials involved in advising the President.

Holding

The Supreme Court held that the lower court had failed to adequately account for the separation-of-powers concerns implicated by broad discovery directed at the Vice President and senior presidential advisers. It emphasized that courts should avoid unnecessary confrontations between coequal branches.

Reasoning

The Court recognized that discovery directed toward presidential advisers can indirectly burden the President's ability to obtain confidential advice.

The D.C. Circuit's subsequent treatment of the case emphasized that executive privilege is designed to protect presidential communications, not to establish an absolute immunity from suit for the President or Vice President.

Implication

The Vice President therefore falls between the President and ordinary executive officers.

A statutory financial-disclosure requirement is comparatively easy to justify.

A statutory rule governing the Vice President's own financial conflicts is also more defensible than an identical restriction imposed upon the President because the Vice President does not independently possess the executive power.

But an investigation into the Vice President's performance of advisory functions may implicate the President's Article II interests even when the Vice President himself is the nominal target.

The relevant constitutional interest can therefore belong to the **Presidency rather than to the Vice President personally.**

XVII. The removal cases reinforce the distinction between subordinate officers and the President.

The principal Article II removal cases do not directly decide presidential ethics regulation, but they provide important structural principles.

A. *Myers v. United States*

In *Myers*, the Court held that Congress could not restrict the President's authority to remove a postmaster exercising executive functions.

The case strongly supports presidential control over subordinate executive officers.

Its implication here is that Congress may prescribe ethical duties for subordinate officers, but those officers remain part of a chain of presidential supervision.

B. *Humphrey's Executor v. United States*

Humphrey's Executor upheld statutory restrictions on the President's ability to remove members of the Federal Trade Commission.

The Court distinguished the FTC from purely executive officers and treated the agency's quasi-legislative and quasi-judicial functions as relevant to the constitutional analysis.

The decision therefore established an important exception to the broadest version of *Myers*.

C. *Morrison v. Olson*

Morrison upheld good-cause restrictions on removal of an independent counsel.

The Court focused on whether the restriction unduly interfered with the President's ability to perform constitutionally assigned functions.

That functional inquiry is useful for ethics regulation because it suggests that not every statutory restriction affecting executive personnel is unconstitutional.

D. *Seila Law*

Seila Law substantially strengthened the modern Court's conception of presidential control.

The Court held that Congress could not place a single agency head exercising substantial executive power beyond presidential removal authority through a for-cause restriction.

The Court emphasized the constitutional importance of presidential accountability and the Vesting Clause.

The case therefore reinforces the proposition that Congress's authority over subordinate executive officials cannot be separated from the President's constitutional responsibility to supervise the Executive Branch.

E. *Collins v. Yellen*

Collins reaffirmed *Seila Law* and held that the statutory removal restriction protecting the FHFA Director was unconstitutional.

The Court again emphasized that executive power is vested in the President and that Congress cannot unnecessarily interfere with presidential control over executive officers.

Overall implication

Taken together, these cases support a structural distinction:

Congress generally regulates executive officers subject to presidential supervision; it does not follow that Congress possesses equivalent authority to regulate the President himself.

An ethics rule applicable to a cabinet secretary therefore does not become constitutionally applicable to the President merely because the statutory language uses the same definition of "officer."

XVIII. Presidential ethics regulation is constitutionally strongest when it regulates information and weakest when it controls presidential judgment.

The authorities collectively support a functional framework.

Ethics mechanism	Constitutional position
Financial disclosure	Strongest case for constitutionality
Public transparency	Generally strong
Financial investigations	Generally permissible
Judicial process for personal records	Generally permissible
Ethics investigations into unofficial conduct	Relatively strong
Investigation of official presidential conduct	Less permissible
Mandatory recusal	Unsettled and constitutionally sensitive
Mandatory divestiture	Unsettled and potentially highly sensitive
Criminal enforcement against official presidential acts	Highly problematic
Rules applicable to subordinate executive officers	Stronger constitutional footing
Rules applicable to Vice President	Intermediate

This table should not be understood as creating categorical constitutional rules. Rather, it reflects the direction of the authorities.

XIX. The most important constitutional distinction is between regulating presidential administration and regulating presidential conduct.

The cases do not support the proposition that Congress is powerless to regulate presidential ethics.

They also do not support the opposite proposition that Congress may impose upon the President every ethics requirement applicable to subordinate executive officers.

Instead, the authorities reveal a constitutional dividing line.

A. Regulation of presidential administration

Congress possesses substantial authority to regulate the machinery through which executive power is exercised.

Examples include:

- financial reporting;
- recordkeeping;
- disclosure;
- reporting to Congress;
- procedural safeguards;
- regulation of subordinate officials;
- auditing;
- preservation of presidential records;
- and investigative procedures that do not directly disable presidential action.

These regulations generally leave the President constitutionally capable of exercising Article II power.

B. Regulation of presidential conduct

The constitutional question changes when Congress dictates what the President may personally do with an Article II power.

Examples include:

- prohibiting the President from making a decision;
- requiring the President to recuse himself;
- requiring the President to divest property;
- making the exercise of presidential power criminal because of a financial interest;
- or subjecting the President's official acts to criminal prosecution.

These rules potentially interfere directly with constitutional power rather than merely regulating its administration.

That distinction is consistent with *Nixon v. GSA*, *Mazars*, *Seila Law*, *Collins*, and especially *Trump v. United States*.

XX. Transparency requirements therefore raise fewer constitutional concerns than substantive restrictions on presidential action.

The case law provides unusually strong support for this conclusion.

The D.C. Circuit expressly recognized that financial-disclosure laws impose substantially fewer burdens on the President than laws requiring divestiture or recusal.

The Supreme Court's treatment of presidential information in *Mazars* and *Vance* is consistent with that distinction. Neither decision treated the President's personal financial information as constitutionally immune. Instead, both decisions established procedural or structural protections surrounding the acquisition of that information.

That is fundamentally different from a law that says:

> Because the President owns X, the President may not exercise power Y.

The latter regulation implicates the allocation of constitutional authority itself.

This is why **disclosure is constitutionally much easier to defend than recusal**, even though both may be described as “ethics requirements.”

XXI. The constitutional basis for regulating presidential appointees is considerably stronger.

The distinction between the President and his appointees is ultimately structural.

Article II establishes the President as the head of the Executive Branch and gives Congress substantial authority to establish offices, prescribe statutory duties, and establish qualifications for subordinate officials.

Congress may therefore impose ethics requirements upon executive officers whose authority derives from statute and whose positions remain subordinate to presidential supervision.

Such restrictions ordinarily do not prevent the President from exercising his constitutional power. Instead, they regulate the people through whom the President carries out that power.

The removal cases reinforce this distinction.

Myers recognized broad presidential authority over executive officers. *Humphrey's Executor* and *Morrison* permitted certain statutory constraints under particular circumstances. *Seila Law* and *Collins* subsequently emphasized stronger presidential control over officers exercising executive power.

The cases therefore do not establish that Congress must leave subordinate officers ethically unregulated. They instead establish that **Congress's regulation of subordinate officers operates within a constitutional system in which presidential supervision remains significant.**

That is a materially different constitutional relationship from a statute directly commanding the President himself.

XXII. A proposed constitutional framework

The authorities support a five-level framework for evaluating presidential ethics requirements.

Level One: Disclosure and transparency

Generally constitutionally permissible.

Congress's strongest position is where the requirement merely requires the President to disclose financial interests, liabilities, transactions, gifts, or similar information.

The principal constitutional concerns are likely to involve:

- unreasonable breadth;
- privacy;
- executive privilege;
- national security;
- congressional investigative purpose;
- and enforcement mechanisms.

The underlying disclosure obligation itself presents comparatively little Article II difficulty.

Level Two: Information gathering and investigation

Generally permissible, but subject to heightened procedural protection.

Congress and courts may investigate matters involving the President.

But the investigation must account for:

- executive privilege;
- presidential communications;
- separation of powers;
- congressional legislative purpose;
- alternative sources;
- burden on presidential functions;
- and national-security concerns.

United States v. Nixon, *Cheney*, *Mazars*, and *Vance* establish that presidential status does not produce categorical immunity from process. But they also demonstrate that the President cannot be treated as an ordinary litigant or ordinary executive officer.

Level Three: Ethics rules regulating presidential personal conduct

Generally more constitutionally uncertain.

Rules concerning purely personal or unofficial conduct are easier to defend under *Clinton v. Jones*.

But even here, the particular enforcement mechanism matters.

A civil disclosure obligation is different from criminal prosecution.

A rule concerning private conduct is different from a rule concerning the President's exercise of official authority.

Level Four: Recusal and divestiture

Constitutionally unsettled and requires heightened caution.

These mechanisms directly affect the President's ability to exercise governmental authority.

Congress's constitutional authority is therefore substantially less certain.

The D.C. Circuit has specifically recognized the distinction between disclosure and recusal/divestiture but has not resolved the latter questions.

No Supreme Court decision squarely resolves whether Congress can compel a sitting President to recuse himself from exercising an Article II power because of a statutory financial conflict.

Accordingly, any categorical assertion that such requirements are unquestionably constitutional—or unquestionably unconstitutional—would go beyond the existing precedent.

Level Five: Criminal or other coercive enforcement against official presidential action

The most constitutionally difficult category.

After *Trump v. United States*, the constitutional barrier is substantially higher.

Core presidential constitutional acts receive absolute criminal immunity.

Other official presidential acts receive at least presumptive immunity.

Consequently, a statutory ethics provision cannot simply be assumed enforceable against the President through the ordinary criminal process merely because Congress possesses authority to enact the underlying ethical standard.

The enforcement mechanism itself may become constitutionally defective if it permits another branch to punish the President for exercising constitutionally protected presidential authority.

Conclusion

The Constitution does **not** appear to establish a categorical exemption for the President from federal ethics regulation. The existing legal framework demonstrates the opposite: Congress may constitutionally impose at least some transparency, disclosure, recordkeeping, and investigative obligations upon the President, and the President is not categorically immune from judicial or congressional demands for information.

But the President is also **not constitutionally equivalent to an ordinary executive officer**.

Article II vests executive power uniquely in the President, imposes constitutional responsibilities upon him through the Take Care Clause, and gives him responsibilities in military affairs, foreign relations, appointments, pardons, and administration of federal law that cannot simply be transferred to another officer. The modern separation-of-powers cases reinforce that structural distinction.

The strongest constitutional line therefore runs between **information regulation and substantive control of presidential decision-making**.

Financial disclosure is the clearest example of constitutionally permissible regulation. It requires the President to reveal information but does not dictate how he exercises Article II authority. *Lovitky* confirms the application of federal financial-disclosure law to the presidency, while *Mazars* and *Vance* establish that presidential financial information is not categorically immune from governmental process.

Investigations likewise are not categorically forbidden. *United States v. Nixon* rejects an absolute presidential privilege, while *Cheney* and *Mazars* establish that investigations implicating the Presidency must be structured with particular sensitivity to separation-of-powers concerns.

The constitutional difficulty rises sharply when an ethics requirement **changes what the President may do rather than merely what the President must disclose**. Mandatory recusal and divestiture fall into that category. The D.C. Circuit has expressly recognized that these requirements present more difficult constitutional questions than disclosure requirements but has not resolved them.

The question becomes more difficult still when the government seeks to impose criminal consequences upon presidential official conduct. *Trump v. United States* establishes that the constitutional structure affords the President absolute immunity for core constitutional acts and at least presumptive immunity for other official acts.

The Vice President should occupy an intermediate position. The Vice President is constitutionally distinct from ordinary executive officers, but Article II does not vest the executive power in the Vice President. Congress consequently has a stronger constitutional basis for applying ordinary ethics requirements to the Vice President. Yet *Cheney* demonstrates that regulation or investigation of the Vice President may implicate the President's constitutional interests when the Vice President is acting as a close presidential adviser.

The resulting constitutional framework is therefore:

Congress may regulate presidential transparency more readily than presidential conduct; presidential conduct more readily than presidential decision-making; and presidential decision-making more readily when the regulation concerns unofficial conduct than when it disables the President from exercising a core Article II power.

For subordinate executive officials, the constitutional baseline is different. Congress generally possesses broad authority to prescribe ethical duties governing officers who exercise delegated executive authority, subject to the President's Article II supervision and removal powers. The removal cases—particularly *Myers*, *Morrison*, *Seila Law*, and *Collins*—support that structural distinction.

The principal unresolved constitutional question is thus not whether Congress may enact “ethics requirements” applicable to the President. **It plainly may enact at least some such requirements.** The difficult question is where Congress's authority ends when an ethics rule ceases to regulate transparency or administration and instead begins to determine **whether, when, or how the President may exercise power that Article II itself places in the presidency.**

On current precedent, the best prediction is that courts would treat that latter category with substantially greater constitutional skepticism than ordinary executive-branch ethics regulation.